

**THE KING EDWARD MEDICAL UNIVERSITY LAHORE ACT,
2005
(V of 2005)**

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TEXT

**¹THE KING EDWARD MEDICAL UNIVERSITY, LAHORE ACT 2005
(V of 2005)**

[12th May, 2005]

An
Act

An Act to grant status of University to the King Edward Medical College, Lahore.

Preamble.— Whereas it is expedient to reconstitute and grant the King Edward Medical College, Lahore, the status of University for the purpose of imparting better medical education, encouraging and arranging extensive research and publications in the field of medical sciences, holding examinations and awarding medical degrees and to make provisions for matters connected therewith or incidental thereto;

It is hereby enacted as follows:—

**CHAPTER I
PRELIMINARY**

1. Short title and commencement.— (1) This Act may be called the King Edward Medical University, Lahore Act 2005.

(2) It shall come into force at once.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context—

- (i) “Academic Council” means the Academic Council specified in section 26;
- (ii) “Act” means the King Edward Medical University, Lahore Act 2005;
- (iii) “Authority” includes one or more authorities of the University specified in section 21;
- (iv) “Chairman” means head of a teaching department;
- (v) “Chancellor” means the Chancellor specified in section 9;
- (vi) “Dean” means the Chairman of the Board of Faculty specified in the Schedule;
- (vii) “Director” means the Director of an institute;
- (viii) “Faculty” means a faculty specified in the Schedule;
- (ix) “Government” means the Government of the Punjab;
- (x) “Hospital” means the hospital declared by the Government to be an attached hospital of the University for teaching purposes;

¹This Act was passed by the Punjab Assembly on 4 April 2005; assented to by the Governor of the Punjab on 7 May 2005; and, was published in the Punjab Gazette (Extraordinary), dated 12 May 2005, pages 5393 to 5410.

- (xi) "Institution" means a medical institution imparting instruction in a subject or subjects relating to a faculty and includes a teaching unit attached with the University, and the term "institute" shall be construed accordingly;
- (xii) "prescribed" means prescribed by rules made under this Act;
- (xiii) "Pro-Chancellor" means the Pro-Chancellor specified in section 12;
- (xiv) "Pro-Vice Chancellor" means the Pro-Vice Chancellor appointed under section 15;
- (xv) "Professor Emeritus" means a retired Professor working in a faculty in an honorary capacity;
- (xvi) "Registered graduate" means a graduate of the University who either resides within its jurisdiction or otherwise but his name is entered in the register maintained for the purpose;
- (xvii) "Regulations" means the regulations made under section 31, or until such regulations are made, the regulations immediately applicable to the King Edward Medical College, Lahore, made under the University of the Punjab Act, 1973 (Punjab Act IX of 1973), shall continue to apply and shall be deemed to have been made under this Act in so far as they are not inconsistent therewith;
- (xviii) "Research Officer" means a person equivalent in rank to a teacher engaged for whole-time research;
- (xix) "Rules" means the rules made under section 30, or until such rules are made, the rules immediately applicable to the King Edward Medical College, Lahore, made under the University of the Punjab Act, 1973 (Punjab Act IX of 1973), shall continue to apply and shall be deemed to have been made under this Act in so far as they are not inconsistent therewith;
- (xx) "Schedule" means Schedule to this Act as may be amended from time to time by an order of the Senate;
- (xxi) ²[* * * * *]
- (xxii) "Section" means a section of this Act;
- (xxiii) "Senate" means the Senate specified in section 22;
- (xxiv) "Syndicate" means the Syndicate specified in section 24;
- (xxv) "Teacher" includes a Professor, Associate Professor, Assistant Professor and Demonstrator engaged whole-time by the University, college, institute or the institution and such other persons as may be declared as teachers by the regulations;
- (xxvi) "Teaching department" means a teaching department maintained and administered by the University;
- (xxvii) "University" means the King Edward Medical University, Lahore, established under section 3; and

²Omitted by the King Edward Medical university, Lahore (Amendment) Act 2012 (LIII of 2012); and published in the Punjab Gazette (Extraordinary), dated 30.7.2012, pages 435-436, s.2

(xxviii) "Vice Chancellor" means the Vice Chancellor appointed under section 13.

CHAPTER II THE UNIVERSITY

3. Establishment and incorporation.— (1) As soon as may be after the commencement of this Act, the Government shall by an order published in the official Gazette establish the University to be known as the King Edward Medical University, Lahore, by reconstituting the King Edward Medical College, Lahore.

(2) The University shall consist of the Chancellor, the Pro-Chancellor, the Vice Chancellor, the Pro-Vice Chancellor and members of the Senate, the Syndicate, the Academic Council and all other authorities.

(3) The University shall be a body corporate and shall have perpetual succession and a common seal and may sue and be sued by the said name.

(4) The University shall be competent to acquire and hold property both movable and immovable and may lease, sell or otherwise alienate any movable and immovable property which vests in or has been acquired by it.

(5) Consequent upon the order published under sub-section (1), the post/office of the Principal, King Edward Medical College, Lahore shall be upgraded to that of the Vice Chancellor, and all properties, rights and interests of whatever kind, used, enjoyed, possessed, owned or vested in or held in trust by or for the King Edward Medical College, Lahore, and all liabilities legally subsisting against it shall stand transferred to the University.

4. Functions.— The University shall perform the following functions, namely—

- (a) to provide for instruction in such teaching subjects, disciplines or branches of learning at Graduate or Post-Graduate level as it may deem fit, and to make provision for research and the advancement and dissemination of knowledge in such manner as it may determine;
- (b) to prescribe or identify courses of studies to be conducted by it and the faculties;
- (c) to hold examinations and to award and confer degrees, diplomas, certificates and other academic distinctions to and on persons who have been admitted to and have passed its examinations;
- (d) to confer honorary degrees or other distinctions on persons approved therefor;
- (e) to provide for persons having received education/training in other institutions, such instructions as it may determine, and to award degrees, diplomas or certificates to such persons;
- (f) to confer degrees on persons who have carried on independent research under certain conditions;
- (g) to inspect constituent institutes/faculties;
- (h) for the purpose of admission to the University, recognize the examination passed and the periods of study spent by students at other universities and places of learning as equivalent to such

examinations and periods of study in the University, and to withdraw such recognition in appropriate cases after giving notice to the concerned student;

- (i) to co-ordinate with other universities and public authorities in such manner, and for such purposes as it may determine;
- (j) to create posts of Professors, Associate Professors, Assistant Professors and Demonstrators and other posts for research, publication, extension, administration and other related purposes and to appoint persons thereto;
- (k) to confer or award fellowships, scholarships, bursaries, medals and prizes as may be prescribed;
- (l) to establish teaching departments, schools, colleges, faculties, institutes, museums and centers of excellence including area study center and other centers of learning for the development of teaching and research and to make such arrangements for their maintenance, management and administration as may be prescribed;
- (m) to arrange, administer and maintain hostels for students of the University;
- (n) to promote and organize recreational and extra-curricular activities for physical and mental growth, health and fitness of the students;
- (o) to enforce and maintain discipline amongst the students of the University;
- (p) to demand and receive such fees and other charges as may be prescribed;
- (q) to make provisions for research and advisory services and, in relation thereto, enter into arrangements with other institutions or with public bodies as may be deemed necessary;
- (r) to make, amend, alter, vary or rescind agreements, contracts and leases;
- (s) to receive grants, bequests, trusts, gifts, donations, endowments and other contributions made to the University and to make investment, if any, with the permission of the Senate;
- (t) to engage and provide for the printing and publications of research papers and other works for the advancement of medical education; and
- (u) to do all such other acts and things incidental to the aforesaid, as may be necessary for the University as a custodian of medical education, learning and research.

5. Jurisdiction.— The University shall exercise the powers conferred on it by or under this Act within its jurisdiction and in respect of its teaching jurisdiction in its attached hospitals:

Provided that the hospitals so attached under clause (x) of section 2 shall be under the administrative control of the Government.

6. University open to all persons.— The University shall be open to all and no person shall be denied admission or privileges of the University on the basis of sex, caste, color, creed, class, race, religion or status.

7. Teaching.— (1) All recognized teaching in various subjects, disciplines or courses shall be conducted by the University, in the manner specified under the regulations and may include lectures, tutorials, discussions, seminars, demonstrations as well as practical work in the laboratories, hospitals, workshops and community and other methods of instruction.

(2) The courses and the curricula shall be such as may be prescribed.

CHAPTER III OFFICERS AND THEIR FUNCTIONS

8. Officers of the University.— The following shall be the officers of the University, namely—

- (i) the Vice Chancellor;
- (ii) the Pro-Vice Chancellor;
- (iii) the Deans;
- (iv) the Directors;
- (v) the Chairman;
- (vi) the Registrar;
- (vii) the Controller of Examinations;
- (viii) the Treasurer;
- (ix) the Librarian; and
- (x) such other persons as may be prescribed.

9. Chancellor.— (1) The Governor of the Punjab shall be the Chancellor of the University.

(2) The Chancellor or, in his absence the Pro-Chancellor or in his absence the nominee of the Chancellor shall preside at the convocation of the University and the meetings of the Senate.

(3) Where the Chancellor is satisfied that any order or proceedings of any authority is not in accordance with the provisions of the Act, the rules or the regulations, he may, after calling upon such authority to show cause, by order in writing, modify or set aside such order or proceedings, as the case may be.

(4) Any proposal to confer an honorary degree shall be subject to approval of the Chancellor.

(5) The Chancellor shall be competent to approve the rules as may be made and submitted to him by the Senate whereupon he may either approve with or without modifications or refer them back to the Senate for re-consideration.

(6) The Chancellor may terminate any person from the membership of any authority if he is satisfied that such person—

- (i) has become of unsound mind; or
- (ii) has been incapacitated to function as a member of such authority; or
- (iii) is inefficient or has ceased to be efficient for any reason; or

- (iv) has been convicted of charges of corruption or moral turpitude.
- (7) Notwithstanding anything to the contrary contained in this Act, the rules and the regulations, the Chancellor may—
 - (a) place on deputation the services of any officer, teacher or any other employee of the University at the disposal of the Government or such other university or institution, for such period and on such terms and conditions as may be agreed with the borrowing agency; provided that such terms and conditions shall not be less favorable than those admissible to him immediately before his transfer on deputation; and
 - (b) make appointment to any post in the University, whether as a teacher or otherwise from persons in the services of Pakistan or from officers, teachers or other employees of any other university as recommended by the Government.

³[(8) In the performance of his functions under this Ordinance, the Chancellor shall act and shall be bound in the same manner as the Governor of the Province acts and is bound under clause (1) of Article 105 of the Constitution of the Islamic Republic of Pakistan.]

10. Revisional powers of the Chancellor.— The Chancellor may, of his own motion or otherwise, call for and examine the record of any proceedings in which an order has been passed by any authority for the purpose of satisfying himself as to the correctness, legality or propriety of any finding or order and may pass such orders as he may deem fit:

Provided that no order under this section shall be passed unless the person to be affected thereby is afforded an opportunity of being heard.

11. Inspection and inquiry.— (1) The Chancellor may cause an inspection or inquiry to be made in respect of any matter connected with the University, and shall, from time to time, appoint such person or persons as he may deem fit, for the purposes of conducting inquiry or carrying out inspection of—

- (i) the University, its building, laboratories, libraries, museums, workshops and equipment;
- (ii) any institution, college, hospital or hostel maintained by the University;
- (iii) the teaching and other work conducted by the University; and
- (iv) the conduct of examinations held by the University:

Provided that the Chancellor shall, in every such case, intimate the Syndicate of his intention to cause an inspection or inquiry to be made.

(2) The Chancellor shall forward to the Syndicate the report of such inspection or inquiry and shall, after ascertaining the views of the Syndicate thereon, communicate to it the action to be taken.

(3) The Syndicate shall communicate to the Chancellor such action, if any, as has been taken or may be proposed to be taken upon the results of the inspection or

³Substituted by the King Edward Medical university, Lahore (Amendment) Act 2012 (LIII of 2012); and published in the Punjab Gazette (Extraordinary), dated 30.7.2012, pages 435-436, s.3.

inquiry and such communication shall be submitted to the Chancellor within such time as may be required or specified by him.

(4) Where the Syndicate does not, within a reasonable time, take action to the satisfaction of the Chancellor, the Chancellor may, after considering any explanation furnished or representation made by the Syndicate, issue directions to the Vice Chancellor as he thinks fit and the Vice-Chancellor shall either comply with such directions or cause the compliance thereof.

12. Pro-Chancellor.— (1) The Minister for Health, Government of the Punjab shall be the Pro-Chancellor of the University.

(2) The Pro-Chancellor shall perform such duties and functions and exercise such powers as may be assigned or delegated to him by the Chancellor.

⁴[**13. Vice Chancellor.**— (1) A person who is eligible and who is not more than sixty five years of age on the last date fixed for submission of applications for the post of the Vice Chancellor, may apply for the post.

(2) The Government shall determine, by notification in the official Gazette, the qualifications, experience and other relevant requirements for the post of the Vice Chancellor.

(3) The Government shall constitute, for a term of two years, a Search Committee consisting of not less than three and not more than five members for making recommendations for appointment of the Vice Chancellor.

(4) The Search Committee shall follow such procedure and criteria, for selection of the panel for the post of the Vice Chancellor, as the Government may, by notification, determine.

(5) The Search Committee shall recommend to the Government, a panel of three persons who, in its opinion, are suitable for appointment as the Vice Chancellor.

(6) The Chancellor shall appoint the Vice Chancellor for each term of four years but he shall serve during the pleasure of the Chancellor:

(7) The Government shall determine the terms and conditions of service of the Vice Chancellor.

(8) The incumbent Vice Chancellor shall not be allowed any extension in his tenure but subject to eligibility he may again compete for the post of the Vice Chancellor in accordance with the procedure prescribed by or under this section.

(9) If the office of the Vice Chancellor is vacant or the Vice Chancellor is absent or is unable to perform the functions of the Vice Chancellor owing to any cause, the Pro-Vice Chancellor shall perform the functions of the Vice Chancellor but, if at any time, the office of Pro-Vice Chancellor is also vacant or the Pro-Vice Chancellor is absent or is unable to perform the functions of the Vice Chancellor owing to any cause, the Chancellor shall make such temporary arrangements for the performance of the duties of the Vice Chancellor as he may deem fit.]

⁴Substituted by the King Edward Medical University, Lahore (Amendment) Act 2012 (LIII of 2012); and published in the Punjab Gazette (Extraordinary), dated 30.7.2012, pages 435-436, s.4. Earlier Substituted by the King Edward Medical University (Amendment) Act 2010 (XII of 2010); and published in the Punjab Gazette (Extraordinary), dated 23.7.2010, pages 223-224, s.2.

14. Powers and functions of Vice Chancellor.— (1) Subject to sections 22 and 24, the Vice-Chancellor shall be the chief executive of the University and exercise administrative control over all its officers, teachers and other employees and shall ensure the enforcement of the provisions of this Act, the rules and the regulations made thereunder.

(2) The Vice Chancellor may teach and undertake clinical assignments in the University and its attached hospital for academic purposes but shall not undertake any private practice inside or outside the premises of the University for which he will be given adequate allowance as may be determined by the Government.

⁵[(3) Subject to such conditions as may be prescribed, the Vice Chancellor may, in an emergency, take an action which is not otherwise in the competence of the Vice Chancellor but is in the competence of any other Authority.

(3a) The Vice Chancellor shall, within seven days of taking an action under sub-section (3), submit a report of the action taken to the Pro-Chancellor and to the members of the Syndicate; and, the Syndicate shall, within forty five days of such an action of the Vice-Chancellor, pass such orders as the Syndicate deems appropriate.]

(4) The Vice-Chancellor shall also be competent to—

- (i) preside at the meetings of the authorities or bodies except the Senate notwithstanding any other nomination thereon;
- (ii) fill temporary posts for a period not exceeding one year;
- (iii) sanction all expenditure provided for in the approved budget, and to re-appropriate funds within the same major head of expenditure;
- (iv) sanction the re-appropriation of an amount not exceeding five hundred thousand rupees for an unforeseen but permissible item not provided for in the budget, and report it to the Syndicate at the next meeting;
- (v) appoint experts to set question papers and examiners for all examinations of the University after receiving panels of names from the relevant authorities;
- (vi) make such arrangements for the security of examination papers, marks and results as he may consider necessary;
- (vii) direct teachers, officers and other employees of the University to take up such assignments in connection with teaching, research, examinations, administration and such other activities in the University as he may, in its interest, consider necessary in consultation with the Dean concerned;
- (viii) delegate, subject to such conditions, if any, as may be prescribed, any of his powers under this Act, to any officer of the University;
- (ix) appoint employees up to the scale of pay equivalent to BPS 18:
Provided that all appointments equivalent to BPS 17 and BPS 18 shall be made on the recommendations of the Selection Board; and
- (x) suspend, expel or rusticate students of the University on the recommendations of the Discipline Committee.

⁵Substituted by the King Edward Medical university, Lahore (Amendment) Act 2012 (LIII of 2012); and published in the Punjab Gazette (Extraordinary), dated 30.7.2012, pages 435-436, s.5

⁶[**15. Pro-Vice Chancellor.**– (1) The Chancellor shall nominate the Pro-Vice Chancellor of the University, from amongst three senior most Professors of the University, for a term of three years.

(2) The Pro-Vice Chancellor shall perform such functions as may be assigned to him under this Act, statutes or regulations.

(3) The Syndicate or the Vice Chancellor may assign any other functions to the Pro-Vice Chancellor in addition to his duties as Professor.]

16. Registrar.– (1) The Registrar shall be a whole-time officer of the University and shall be appointed by the Vice Chancellor on the recommendation of the Selection Board on such terms and conditions as may be prescribed.

(2) The Register shall–

- (a) be the custodian of the common seal and the academic records of the University;
- (b) maintain a register of registered graduates in the prescribed manner;
- (c) initiate and process nomination of members to the various authorities in the manner as may be prescribed; and
- (d) perform such other duties as may be prescribed.

17. Controller of Examinations.– (1) The Controller of Examinations shall be a whole-time officer of the University and shall be appointed by the Vice Chancellor on the recommendations of the Selection Board on such terms and conditions as may be prescribed.

(2) The Controller of Examinations shall be responsible for the conduct of examinations and all matters connected therewith including formation of MCQ Banks, maintenance of secrecy of examination, tabulation of results; and perform such other duties as may be prescribed.

18. Treasurer.– (1) The Treasurer shall be a whole-time officer of the University and shall be appointed by the Vice Chancellor on the recommendations of the Selection Board on such terms and conditions as may be prescribed.

(2) The Treasurer shall be responsible to–

- (a) manage property, finances and investments of the University;
- (b) prepare annual and revised budget estimates of the University and present them to the Finance and Planning Committee, the Syndicate and the Senate;
- (c) ensure that the funds of the University are utilized for the purposes for which they are provided; and
- (d) perform such other duties as may be prescribed.

19. Auditor.– The Auditor shall be appointed on contract basis on deputation from the Government.

⁶Substituted *ibid.*, s.6.

20. Other officers and staff members.— (1) Subject to the provisions of this Act, the University may employ such officers and employees in its service as may be necessary for the efficient performance of its functions in such manner and on such terms and conditions as may be prescribed.

(2) The existing government employees of the King Edward Medical College, Lahore, shall be deemed to be the employees of the University unless they opt for their retention in the Government within sixty days of the order made under section 3:

Provided that the terms and conditions of service of all persons serving in connection with the affairs of any institution, institute, or teaching department in any capacity where transferred or so transferred to the University shall be determined by the Government in the manner as may be prescribed:

Provided further that such terms and conditions shall not be less favorable than those admissible to them immediately before their transfer.

(3) Any question arising under the provisos to sub-section (2) shall be referred to the Government and the decision of the Government on such question shall be final.

(4) Until the rules regulating the services of the employees of the University are made, all service rules as are applicable to employees in Government service shall mutatis mutandis apply to employees of the University in so far as they are not inconsistent with the provisions of the Act.

CHAPTER IV AUTHORITIES AND THEIR FUNCTIONS

21. Authorities.— The following shall be the authorities of the University, namely—

- (i) the Senate;
- (ii) the Syndicate;
- (iii) the Academic Council;
- (iv) the Board of Faculty;
- (v) the Board of Studies;
- (vi) the Selection Board;
- (vii) the Advanced Studies and Research Board;
- (viii) the Performance Audit and Vigilance Committee;
- (ix) the Finance and Planning Committee;
- (x) the Discipline Committee; and
- (xi) such other authorities as may be prescribed.

22. Senate.— (1) The Senate shall consist of—

- (i) the Chancellor;
- (ii) the Pro-Chancellor;
- (iii) the Vice Chancellor;
- (iv) the Pro-Vice Chancellor;

- (v) the Secretary Health;
- (vi) the Secretary Finance;
- (vii) the Secretary Education;
- (viii) one member of the Syndicate to be nominated by the Chancellor;
- (ix) one representative of Higher Education Commission;
- (x) the Deans;
- (xi) the Directors;
- (xii) Professor Emeritus;
- (xiii) the Chairmen of the teaching departments;
- (xiv) the Registrar;
- (xv) the Controller of Examinations;
- (xvi) the Chairman of the Hospital Management Committee, if any;
- (xvii) Medical Superintendents of attached hospitals;
- (xviii) the officer or teacher in-charge of students affairs;
- (xix) the Chief Justice of the Lahore High Court, Lahore, or a judge of the Lahore High Court nominated by the Chief Justice;
- (xx) four members of the Provincial Assembly of the Punjab ⁷[including at least two female member of the Assembly] to be nominated by the Speaker of the Provincial Assembly of the Punjab;
- (xxi) the Chairman Standing Committee on Health of the Provincial Assembly of the Punjab;
- (xxii) the Parliamentary Secretary for Health, Government of the Punjab;
- (xxiii) the Chairman, Punjab Public Service Commission, Lahore, or his nominee; and
- (xxiv) five persons ⁸[including at least two women] of eminence to be nominated by the Government in the field of medical science, hospital management, finance, law and social work, preferably philanthropist.

(2) The Chancellor or, in his absence, the Pro-Chancellor, or in his absence the nominee of the Chancellor shall preside or act as the chairperson of the Senate.

(3) The members of the Senate, other than ex-officio members, shall hold office for a period of three years.

(4) The member of the Senate other than the ex-officio member may under his hand tender his resignation to the Chancellor.

(5) The Senate shall meet at least twice in every year on dates to be fixed by the Vice Chancellor with the consent of the Chancellor.

⁷Inserted by the Punjab Fair Representation of Women Act 2014 (IV of 2014); and published in the Punjab Gazette (Extraordinary), dated 12.3.2014, pages 2733-2744, s.2 and Schedule, at serial No.47.

⁸Inserted *ibid*.

(6) The quorum for the meeting of the Senate shall be one third of the total number of its members, a fraction being counted as one.

23. Powers and functions of the Senate.— The Senate shall be the highest administrative and executive body of the University and shall, subject to the provisions of this Act and the rules, have the powers and discharge the following functions, namely:—

- (a) consider the draft of rules proposed by the Syndicate and deal with them in the manner specified in sub-section (2) of section 30;
- (b) consider and pass resolutions on the annual report, annual statement of accounts and the annual and revised budget estimates submitted by the Syndicate;
- (c) appoint or nominate members to the Syndicate and other authorities in accordance with the provisions of this Act;
- (d) delegate any of its powers to an authority or officer or a committee or sub-committee; and
- (e) perform such other functions as may be prescribed.

24. Syndicate.— (1) The Syndicate shall consist of—

- (a) the Vice Chancellor (Chairman);
- (b) the Pro-Vice Chancellor;
- (c) the Secretary Health or his nominee not below the rank of Additional Secretary;
- (d) the Secretary Finance or his nominee not below the rank of Additional Secretary;
- (e) the Secretary Education or his nominee not below the rank of Additional Secretary;
- (f) one representative of Higher Education Commission;
- (g) the Chairman of the Hospital Management Committee, if any;
- (h) the heads of the associated faculties including Medical Superintendents of attached hospitals and the Dean of Nursing School;
- (i) two Deans to be nominated by the Senate;
- (j) two Professors ⁹[including at least one female Professor] to be nominated by the Vice Chancellor;
- (k) two retired Principals or Professors of the college ¹⁰[including at least one female Principal] to be nominated by the Government;
- (l) two nominees ¹¹[including at least one woman] of the Chancellor;

⁹Inserted by the Punjab Fair Representation of Women Act 2014 (IV of 2014); and published in the Punjab Gazette (Extraordinary), dated 12.3.2014, pages 2733-2744, s.2 and Schedule, at serial No.47.

¹⁰Inserted *ibid*.

¹¹Inserted *ibid*.

- (m) the Chief Justice of the Lahore High Court, Lahore, or a judge of the High Court nominated by the Chief Justice;
- (n) the Vice Chancellor, University of the Punjab, Lahore, or his nominee;
- (o) the Vice Chancellor, Lahore University of Management Sciences, Lahore, or his nominee;
- (p) the Vice Chancellor, University of Engineering and technology, Lahore, or his nominee;
- (q) the Chairman, Punjab Public Service Commission, Lahore, or his nominee;
- (r) two financial experts or bankers ¹²[including at least one woman] to be nominated by the Government;
- (s) two philanthropists or representatives of NGOs ¹³[including at least one woman] to be nominated by the Government; and
- (t) four members of the Provincial Assembly of the Punjab to be nominated by the Speaker of the Provincial Assembly of the Punjab of whom at least one shall be a woman member.

(2) The members of the Syndicate, other than ex-officio members, shall hold office for a period of three years.

(3) The quorum for a meeting of the Syndicate shall be one-third of the total number of its members, a fraction being counted as one.

(4) The Registrar shall act as the Secretary of Syndicate.

25. Powers and functions of Syndicate.— The Syndicate shall be the executive body of the University and shall, subject to the provisions of this Act, the rules and the regulations, have the powers and discharge the following functions, namely:—

- (i) take effective measures to raise the standards of medical teaching, research and publication in the light of national priorities;
- (ii) administer and manage the property and funds of the University;
- (iii) govern and regulate the finances, accounts and investments of the University and for that purpose to appoint such agents as it may think fit subject to any advice tendered by the Finance and the Planning Committee in this behalf;
- (iv) prepare the annual report, the annual and revised budget estimates and to advice the Senate thereon, and to re-appropriate funds;
- (v) execute sale, purchase and transfer of movable or immovable property on behalf of the University;
- (vi) make, modify, vary, and rescind contracts on behalf of the University;

¹²Inserted by the Punjab Fair Representation of Women Act 2014 (IV of 2014); and published in the Punjab Gazette (Extraordinary), dated 12.3.2014, pages 2733-2744, s.2 and Schedule, at serial No.47.

¹³Inserted *ibid*.

- (vii) cause proper books of accounts to be maintained and kept for all sums of money received and expended in relation to all assets and liabilities of the University;
- (viii) invest any money relating unapplied income in any of the securities described in section 20 of the Trusts Act, 1882 (Act II of 1882), in the purchase of immovable property or in such other manner as it may determine, with the like power varying such investments;
- (ix) receive and manage any property transferred, grants, bequests, trusts, gifts donations, endowments and other contributions made to the University;
- (x) administer any funds placed at the disposal of the University for specified purposes;
- (xi) determine the form and the manner of custody and the regulation of use of common seal of the University;
- (xii) provide the buildings, libraries, premises, furniture, apparatus, equipment and other required items for carrying out the work of the University;
- (xiii) establish and maintain hostels or lodgings for the residence of students;
- (xiv) appoint honorary visiting faculty from amongst professionals of national and international repute;
- (xv) create or abolish posts of Professors, Associate Professors, Assistant Professors, Demonstrators and other teaching posts;
- (xvi) create or abolish such administrative, research or other posts as may be necessary;
- (xvii) appoint teachers and other officers on the recommendations of the Selection Board for teaching and other posts equivalent to BPS-19 or above and determine their terms and conditions of appointment including fixation of pay, etc.;
- (xviii) appoint Professor Emeritus on such terms and conditions as may be prescribed;
- (xix) confer honorary degrees in accordance with the conditions as may be prescribed;
- (xx) determine the duties of officers, teachers and other employees of the University;
- (xxi) suspend, punish and remove from service in the manner as may be prescribed such officers, teachers and other employees appointed by the Syndicate;
- (xxii) submit annual report to the Senate and furnish such information as it may call for;
- (xxiii) appoint or nominate members to the various authorities in accordance with the provisions of this Act;
- (xxiv) propose draft rules for submission to the Senate;

- (xxv) consider draft regulations under sub-section (1) of section 30; provided that the Syndicate may make regulations at its own initiative or in consultation with the Academic Council;
- (xxvi) recommend a panel of three names of the persons to be appointed as Medical Superintendent of an attached hospital from amongst the doctors of general cadre of Health Department; and
- (xxvii) regulate, determine and administer all other matters and perform such other functions as have been assigned to it by this Act, the rules and the regulations.

26. Academic Council.— (1) The Academic Council shall consist of—

- (i) the Vice Chancellor (Chairman);
- (ii) the Pro-Vice Chancellor;
- (iii) the Deans;
- (iv) the Directors;
- (v) two retired Principals/Professors ¹⁴[including at least one female] to be nominated by the Vice Chancellor;
- (vi) the University Professors including Professors Emeritus;
- (vii) the Chairmen of all teaching departments;
- (viii) two senior most Associate Professors to be nominated by the Vice Chancellor; and
- (ix) two Assistant Professors ¹⁵[including at least one female Assistant Professor] to be nominated by the Vice Chancellor.

(2) The members as may be appointed by nomination shall hold office for three years.

(3) The quorum for a meeting of the Academic Council shall be one-third of the total number of its members, a fraction being counted as one.

27. Functions of the Academic Council.— (1) The Academic Council shall be the academic body of the University and shall, subject to the provisions of this Act and the rules, have the powers and discharge the following functions, namely:—

- (a) advise the Syndicate on academic matters;
- (b) regulate the conduct of teaching, research, publication and examinations;
- (c) regulate the admission of students to the courses of studies and examinations in the University;
- (d) regulate the conduct and discipline of the students of the University;
- (e) propose to the Syndicate scheme for the constitution and organization of faculties, teaching departments and Board of Studies;

¹⁴Inserted by the Punjab Fair Representation of Women Act 2014 (IV of 2014); and published in the Punjab Gazette (Extraordinary), dated 12.3.2014, pages 2733-2744, s.2 and Schedule, at serial No.47.

¹⁵Inserted *ibid*.

- (f) consider or formulate proposals for the planning and development of teaching and research in the University;
- (g) make regulations on the recommendation of the Board of Faculty and the Boards of Studies, prescribe the courses of studies, the syllabi and the out-line of tests for all University examinations; provided that if the recommendations of the Board of Faculty or a Board of Studies are not received by the prescribed date, the Academic Council may, subject to the approval of the Syndicate, continue for the next year the courses of studies already prescribed for an examination;
- (h) recognize the examinations of other universities or examining bodies as equivalent to the corresponding examinations of the University;
- (i) regulate the award or studentships, scholarships, medals and prizes;
- (j) frame regulations for submission to the Syndicate;
- (k) appoint or nominate members to the various authorities in accordance with the provisions of this Act; and
- (l) perform such other functions as may be prescribed.

28. Constitution, functions and powers of the authorities.— The constitution, functions and powers of the authorities for which no specific provision has been made in this Act shall be such as may be prescribed.

29. Appointment of committees by certain authorities.— The Senate, the Syndicate, the Academic Council, and other authorities may, from time to time, appoint such standing, special or advisory committees as it may deem fit and may nominate such persons on these committees as are not members of the authorities appointing the committees.

CHAPTER V RULES AND REGULATIONS

30. Rules.— (1) The Senate may, subject to the provisions of this Act, make rules for providing certain terms and conditions to regulate all or any of the following matters, namely:—

- (a) the scales of pay and, except matters relating to discipline, other terms and conditions of service of officers, teachers and other employees of the University;
- (b) the constitution of pension, insurance, gratuity, provident fund and benevolent fund for University employees; provided such rules are not repugnant to the general policy of the Government;
- (c) the maintenance of the register of registered graduates;
- (d) the establishment of faculties, institutes, colleges and other academic divisions;
- (e) the power and duties of officers and teachers;

- (f) conditions under which the University may enter into arrangements with other institutions nationally or internationally or with public bodies for purposes of research and advisory services;
- (g) conditions for appointment of Professors Emeritus and award of honorary degrees; and
- (h) the general scheme of studies including the duration of courses and the number of subjects and papers for examinations.

(2) Every proposal relating to matters specified in sub-section (1) shall be initiated by the Syndicate which shall cause the proposed draft to be laid before the Senate which may either pass with or without modifications as it may deem fit, or may reject it:

Provided that the Syndicate shall not propose such draft as may affect the constitution or powers of any authority of the University, until such authority has been given an opportunity of expressing an opinion in writing upon the proposals contained therein.

31. Regulations.— (1) The Syndicate may, subject to the provisions of this Act and the rules, make regulations for regulating all or any of the following matters, namely:—

- (a) courses of study for degrees, diplomas and certificates of the University;
- (b) manner in which the recognized teaching referred to in sub-section (1) of section 7 shall be organized and conducted;
- (c) admission of students to the University;
- (d) conditions under which students shall be admitted to the courses and the examinations of the University and shall become eligible for the award of degrees, diplomas and certificates;
- (e) conduct of examinations;
- (f) fees and other charges to be paid by students for admission to the courses of study and the examinations of the University;
- (g) conduct and discipline of students of the University;
- (h) conditions of residence of the students of the University or the colleges, including the levying of fees for residence hostels and lodges;
- (i) use of hostels and lodges;
- (j) conditions under which a person should carry an independent research to entitle him to a degree;
- (k) institution of fellowships, scholarships, medals and prizes;
- (l) institution of stipends and free and half-free studentships;
- (m) academic costume;
- (n) use of the library;
- (o) formation of teaching departments and Board of Studies; and
- (p) to lay down all other matters specified by the Act and the rules.

(2) Every proposal relating to matters specified in sub-section (1) shall be prepared by the Academic Council and laid before the Syndicate which may approve with or without modifications or refer back to the Academic Council for re-consideration.

CHAPTER VI UNIVERSITY FUND

32. Fund.— (1) There shall be established a University fund to which shall be credited grants received from the federal and provincial governments and incomes from fees, donations, trusts, bequests, endowments, contributions and grant-in-aid from any source.

(2) The fund shall be kept in such custody, form and manner as may be determined by the Government.

33. Recovery of dues.— The University or any person generally or especially authorized by it may apply to the Collector for recovery of any sum accrued to it under any bond and the Collector shall thereupon proceed to recover the sum due, as if it were arrears of land revenue.

34. Property and assets.— (1) The present movable and immovable assets and funds owned and possessed by the King Edward Medical College, and associated faculties shall be deemed to be the assets of the University.

(2) All future assets movable and immovable including land and funds as may be acquired by the University shall become the property of the University.

35. Audit and accounts.— (1) The accounts of the University shall be maintained in such form and manner as may be laid down by the Government.

(2) The audit of accounts, stores and stocks of the University shall be conducted by the authority or agency as may be determined by the Government.

(3) The annual statement of the accounts of the University signed by the Treasurer and the Auditor, shall be submitted to the Government within six months of closing of the financial year.

(4) The observations of the Auditor or auditing agency, together with such annotations as the Treasurer may make, shall be presented to the Syndicate.

CHAPTER VII GENERAL PROVISIONS

36. Retirement.— An officer ¹⁶[other than the Vice Chancellor,] teacher or other employee of the University shall have the right to retire from service on such date, after he has completed twenty years of service qualifying for pension or other retirement benefits as the competent authority may, in the public interest, direct; or where no direction is given, on the completion of sixtieth year of his age.

¹⁶Inserted by the King Edward Medical university, Lahore (Amendment) Act 2012 (LIII of 2012); and published in the Punjab Gazette (Extraordinary), dated 30.7.2012, pages 435-436, s.7

Explanation.— In this section “competent authority” means the appointing authority or a person duly authorized by the appointing authority in that behalf, not being a person lower in rank to the officer, teacher or other employee concerned.

37. Pension, etc.— (1) The University shall constitute for the benefit of its officers, teachers and other employees in such manner and subject to such conditions as may be prescribed such pension, insurance, gratuity, provident fund and benevolent fund schemes as it may deem fit; provided these are not repugnant to the general policy of the Government.

(2) Where any provident fund is constituted under this Act, the provisions of the Provident Act, 1925 (Act XIX of 1925), shall apply as if it were the Government Provident Fund.

38. Filling of casual vacancies in authorities.— (1) Any casual vacancy among the appointed or nominated members of any authority shall be filled in as soon as may be by the person or persons, or the body who appointed or nominated the member whose place has become vacant.

(2) Any member so appointed or nominated under sub-section (1) shall continue to be a member of such authority for the unexpired term for which the person whose place he fills would have been a member.

(3) Whenever any vacancy occurs in any authority for any other reason or as a result of the abolition of a specified office under the Government or an organization, institution or other body outside the University has been dissolved or has ceased to function, it shall be filled in such manner as the Chancellor may direct.

39. Dispute about membership of authorities.— Every question or dispute as to whether any person is entitled to be a member of any authority, or otherwise, it shall be referred to a committee constituted by the Senate.

40. Proceeding of authorities not invalidated by vacancies.— No act, proceeding, resolution or decision of any authority shall be invalid by reason of any vacancy therein or invalidity of appointment or nomination of any de-facto member of the authority.

41. Removal of difficulties.— If any difficulty arises in giving effect to the provisions of this Act, the Chancellor may, on the recommendation of the Vice Chancellor, issue such orders or directions as may not be inconsistent therewith for removing such difficulty.

SCHEDULE

[see-section 2 (xx)]

1. Faculties.– The University shall have the following faculties, namely:–

- (i) Basic Sciences;
- (ii) Medicine and allied specialties;
- (iii) Surgical and allied specialties;
- (iv) Dental Surgery;
- (v) Public Health and preventive medicine;
- (vi) Nursing; and
- (vii) Allied Health Sciences.

2. Board of Faculty.– (1) There shall be a Board of Faculty for each department which shall consist of–

- (i) the Dean;
- (ii) the Chairman and all Professors of the faculty;
- (iii) one Associate Professor, one Assistant Professor and one Demonstrator to be appointed by rotation in order of seniority from each teaching department constituted in the faculty; and
- (iv) three teachers to be nominated by the Vice Chancellor by reason of their specialized knowledge of the subjects which, though not assigned to the faculty have, in the opinion of Vice Chancellor, important bearing on the subjects assigned to the faculty.

(2) The members mentioned in clauses (iii) and (iv) of sub-paragraph (1) shall hold office for two years.

(3) The quorum for a meeting of the Board of Faculty shall be one-third of the total number of members, fraction being counted as one.

(4) The functions of the Board of Faculty shall, subject to the general control of the Academic Council and the Syndicate, be–

- (a) to co-ordinate the teaching, publication and research work in the subjects assigned to the faculty;
- (b) to scrutinize the recommendations of the Board of Studies comprised in the faculty;
- (c) to consider any other academic matter relating to the faculty and to report thereon to the Academic Council; and
- (d) to perform such other functions as may be assigned by the Academic Council or the Syndicate.

3. Dean.– (1) There shall be a Dean of each faculty, who shall be the Chairman and Convener of the Board of Faculty.

(2) The Dean shall be appointed by the Syndicate from amongst the senior most Professors in the faculty.

- (3) The Dean shall hold office for three years.
- (4) The Dean shall ensure proper enforcement and implementation of the rules and regulations relating to various departments.
- (5) The Dean shall coordinate the work of the Board of Studies and the Advanced Studies and Research Board in various departments.
- (6) The Dean shall advise the Vice Chancellor on matters related to teaching, research, academic programs, extension and other developmental projects.
- (7) The Dean shall perform such other duties and exercise such administrative and academic powers as may be delegated to him.
- (8) The Dean shall be responsible for quality assurance of the courses run under its Faculty.

4. Teaching department, etc.– (1) There shall be a teaching department or institute for each subject or a group of subjects, as may be provided under the regulations, and each teaching department or institute shall be headed by a Chairman or the Director, as the case may be.

(2) The Chairman or the Director shall be appointed by the Syndicate for a term of two years from amongst the first three senior most teachers in the department or institute, as the case may be.

(3) The Chairman or the Director, as the case may be, shall plan, organize and supervise the work of the department or institute and shall be responsible to the Dean for the work of his department or institute.

5. Board of Studies.– (1) There shall be a separate Board of Studies for each faculty.

(2) Each Board of Studies shall consist of–

- (i) the Dean of Faculty;
- (ii) all Professors and Associate Professors of the faculty;
- (iii) one teacher other than the Professor or Associate Professor to be appointed by the Vice Chancellor;
- (iv) three teachers other than University teachers to be appointed by the Academic Council; and
- (v) one expert to be appointed by the Vice Chancellor.

(3) The term, of office of members of the Board of Studies, other than ex-officio members, shall be three years.

(4) The quorum for meetings of the Board of Studies shall be one-third of the total number of members, a fraction being counted as one.

(5) The Dean of Faculty shall be the Chairman and Convener of the Board of Studies.

6. Functions of Board of Studies.– The functions of the Board of Studies shall be to–

- (a) advise the authorities on all academic matters connected with instruction, publication, research and examination in the subject or subjects concerned;
- (b) propose curricula and syllabi for all degree, diploma and certificate courses in the subject or subjects concerned;
- (c) suggest a panel of experts for setting examination papers and examiners in the subject or subjects concerned; and
- (d) perform such other functions as may be specified in the Regulations.

7. Advanced Studies and Research Board.– (1) The Advanced Studies and Research Board shall consist of the following members, namely:–

- (i) the Vice Chancellor (Chairman);
- (ii) the Deans;
- (iii) three Professors other than Deans to be appointed by the Syndicate;
- (iv) three teachers having research qualifications and experience to be appointed by the Academic Council; and
- (v) three teachers from colleges having research qualifications to be appointed by the Academic Council.

(2) The term of office of members of the Advanced Studies and Research Board, other than ex-officio members, shall be three years.

(3) The quorum for a meeting of the Advanced Studies and Research Board shall be one-third of the total number of members, a fraction being counted as one.

8. Functions of Advanced Studies and Research Board.– The functions of the Advanced Studies and Research Board shall be to–

- (a) advise the authorities on all matters connected with the promotion of advanced studies and research in the University;
- (b) consider and report to the authorities on the institution of research degrees in the University;
- (c) propose regulations regarding the award of research degrees;
- (d) appoint supervisors for research studies and to determine the subjects of their thesis;
- (e) recommend panels of names of experts for setting examination papers and examiners for research and examinations after considering the proposals of the Board of Studies in this behalf; and
- (f) perform such other functions as may be specified in the regulations.

9. Selection Board.– (1) The Selection Board shall consist of–

- (a) the Vice Chancellor (Chairman);
- (b) the Secretary Health or his nominee not below the rank of an Additional Secretary;
- (c) the Chairman Board of Studies;

- (d) the Chairman, Punjab Public Service Commission or his nominee;
- (e) the Dean concerned;
- (f) one member of the Senate to be nominated by the Chancellor;
- (g) two eminent doctors or scientist in the concerned field to be nominated by the Chancellor; and
- (h) the Chief Justice of the Lahore High Court, Lahore, or a judge of the High Court nominated by the Chief Justice.

(2) The term of office of members of the Selection Board, other than ex-officio members, shall be three years.

(3) The quorum of the Selection Board shall be one-third of total number of members:

Provided that no member who is a candidate for the post to which appointment is to be made shall take part in the proceedings of the Board.

10. Functions of the Selection Board.— The Selection Board shall consider the applications received in response to advertisement for the posts in BPS 17 and above and recommend the names of suitable candidates for appointment to teaching or other posts to the Vice Chancellor in case of appointment to posts in BPS 17 and BPS 18, and to the Syndicate in case of appointment to posts in BPS 19 and above, and may also recommend the grant of a higher initial pay in a suitable case for reasons to be recorded.

11. Performance Audit and Vigilance Committee.— The Performance Audit and Vigilance Committee shall consist of—

- (a) the Vice Chancellor (Chairman);
- (b) the Chairman Hospital Committee, if any;
- (c) Dean of respective faculty; and
- (d) two retired Principals or Professors of the college to be nominated by the Syndicate.

12. Functions of Performance Audit and Vigilance Committee.— The Performance Audit and Vigilance Committee shall, subject to rules and regulations, perform the following functions, namely:—

- (a) lay down parameters for performance audit and efficiency of the teachers with the approval of the Syndicate;
- (b) recommend to the Syndicate cases of repatriation, promotions including accelerated promotions, grant of special pay, etc., and removal from service of teachers; and
- (c) perform such other functions as may be assigned by the Syndicate.

13. Finance and Planning Committee.— (1) The Finance and Planning Committee shall consist of—

- (a) the Vice Chancellor (Chairman);

- (b) Chairman Planning and Development Board or his nominee not below the rank of a member;
- (c) one member of the Senate to be appointed by the Senate;
- (d) one member of the Syndicate to be appointed by the Syndicate;
- (e) the Secretary Health or his nominee not below the rank of an Additional Secretary;
- (f) the Secretary Finance or his nominee not below the rank of an Additional Secretary;
- (g) two members of the Academic Council to be appointed by the Academic Council;
- (h) one professor to be appointed by the Vice Chancellor;
- (i) two nominees of the Chancellor from amongst the legal profession, philanthropist or social workers;
- (j) Medical Superintendents of the attached hospitals;
- (k) the Registrar; and
- (l) the Treasurer.

(2) The term of office of the members of the Finance and Planning Committee, other than the ex- officio members, shall be three years.

(3) The quorum for a meeting of the Finance and Planning Committee shall be one third of the total number of its members.

14. Functions of Finance and Planning Committee.– The functions of the Finance and Planning Committee shall be to–

- (a) consider the annual statement of accounts and the annual and revised budget estimates and advise the Syndicate thereon;
- (b) review periodically the financial position of the University;
- (c) advise the Syndicate on all matters relating to planning, development, finances, investments, accounts of the University;
- (d) raise funds; and
- (e) perform such other functions as may be prescribed.

15. Discipline Committee.– (1) The Discipline Committee shall consist of–

- (a) four Professors including its Chairman to be nominated by the Vice Chancellor; and
- (b) the teacher or officer in-charge of students' affairs by whatever name called who shall be its Secretary.

(2) The term of office of the members of the Discipline Committee, other than ex-officio members, shall be two years.

(3) The quorum for a meeting of the Discipline Committee shall be three members including its chairman.

16. Functions of Discipline Committee.– The functions of the Discipline Committee shall be to–

- (a) deal with all inter-institute cases of indiscipline in the University;
- (b) propose regulations to the Academic Council relating to the conduct and discipline of University students;
- (c) recommend to the Vice Chancellor, the suspension, expulsion or rustication of the student on the basis of inquiry conducted under the rules or the regulations; and
- (d) perform such other functions as may be prescribed.

17. Curriculum Development Committee.– The Curriculum Development Committee shall consist of–

- (a) Vice Chancellor (Chairman);
- (b) five senior Deans; and
- (c) Dean whose curriculum is to be modified.